

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
SHAQUANN SIMMONS,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER BRIAN
CURRY, POLICE OFFICER ERTISCHEK, SERGEANT
KEVIN DARCEY, SERGEANT FEDERICO,
INVESTIGATOR TAYLOR, SERGEANT EILEEN
MCGLYNN, and POLICE OFFICERS JOHN DOES #1-10
(names and number of whom are unknown at present), and
other unidentified members of the New York City Police
Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

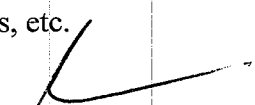
Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 21, 2013

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: CITY OF NEW YORK, New York City Law Department, 100 Church Street, NY, NY
10007
POLICE OFFICER BRIAN CURRY, 75TH PRECINCT, 1000 SUTTER AVE,
BROOKLYN, NY 11208
POLICE OFFICER ERTISCHEK, 75TH PRECINCT, 1000 SUTTER AVE,
BROOKLYN, NY 11208
SERGEANT KEVIN DARCEY, 75TH PRECINCT, 1000 SUTTER AVE, BROOKLYN,
NY 11208
SERGEANT FEDERICO, 75TH PRECINCT, 1000 SUTTER AVE, BROOKLYN,
NY 11208
INVESTIGATOR TAYLOR, BROOKLYN TRANSIT ROBBERY SQUAD, 653
GRAND AVENUE, BROOKLYN, NY 11238
SERGEANT EILEEN MCGLYNN, TRANSIT DISTRICT 33, 2399 FULTON ST,
BROOKLYN, NY 11233

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(names and number of whom are unknown at present), and
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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, SHAQUANN SIMMONS, by his attorneys, Jacobs & Hazan, LLP, as and for
his Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of
defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section
1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United
States Constitution, and the common law and the laws of the State of New York. On May 23,
2012, at approximately 8:00 a.m., plaintiff, SHAQUANN SIMMONS, while lawfully laying in a
hospital recovery room bed at Brookdale University Hospital and Medical Center, was subject to
an unlawful detention, false imprisonment, and false arrest by the defendant New York City
police officers. Plaintiff was deprived of his constitutional and common law rights when the
individual defendants unlawfully confined, and caused the unjustifiable arrest of plaintiff in
violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff SHAQUANN SIMMONS is a resident of the County of Queens,
State of New York.

3. POLICE OFFICER BRIAN CURRY, is and was at all times relevant herein,
an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER BRIAN CURRY, is and was at all times relevant herein, assigned to the 75th Precinct.

5. POLICE OFFICER BRIAN CURRY, is being sued in his individual and official capacity.

6. POLICE OFFICER ERTISCHEK, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER ERTISCHEK, is and was at all times relevant herein, assigned to the 75th Precinct.

8. POLICE OFFICER ERTISCHEK, is being sued in his individual and official capacity.

9. SERGEANT KEVIN DARCEY, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT KEVIN DARCEY, is and was at all times relevant herein, assigned to the 75th Precinct.

11. SERGEANT KEVIN DARCEY, is being sued in his individual and official capacity.

12. SERGEANT FEDERICO, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT FEDERICO, is and was at all times relevant herein, assigned to the 75th Precinct.

14. SERGEANT FEDERICO, is being sued in his individual and official capacity.

15. INVESTIGATOR TAYLOR, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. INVESTIGATOR TAYLOR, is and was at all times relevant herein, assigned to the Brooklyn Transit Robbery Squad.

17. INVESTIGATOR TAYLOR, is being sued in his individual and official capacity.

18. SERGEANT EILEEN MCGLYNN, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. SERGEANT EILEEN MCGLYNN, is and was at all times relevant herein, assigned to the Transit District 33 Precinct.

20. SERGEANT EILEEN MCGLYNN, is being sued in his individual and official capacity.

21. New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

25. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

26. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

27. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

28. The CITY OF NEW YORK held a hearing pursuant to 50-h of the general municipal law on August 16, 2012.

29. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

30. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

31. On May 23, 2012 at approximately 8:00 a.m., plaintiff SHAQUAN SIMMONS, while lawfully laying in a hospital recovery room bed at Brookdale University Hospital and Medical Center, located at Brookdale Plaza, Brooklyn, NY 11212, was unlawfully handcuffed and shackled to his bed and arrested by the defendant NYPD officers, without probable cause or legal justification.

32. By way of background, on May 21, 2012, while crossing Pitken Avenue in Brooklyn, New York, on his way home from school, plaintiff was shot in the upper thigh by an unknown individual.

33. Several defendant NYPD officers arrived at the scene and questioned plaintiff about the shooting, and then plaintiff was transported by EMS to Brookdale University Hospital and Medical Center.

34. Shortly after plaintiff arrived at the Emergency Room at Brookdale University Hospital Center, plaintiff's mother arrived at the emergency room to visit plaintiff.

35. Shortly after plaintiff's mother arrived at the Emergency Room, several defendant police officers came to the hospital and questioned plaintiff's mother about the incident.

36. On the morning of May 22, 2012, the day after he was shot, plaintiff had an Open Reduction Internal Fixation (ORIF) surgery at Brookdale University Hospital and Medical Center to repair his right femur, and was then brought to a recovery room.

37. On May 22, 2012, at approximately 10:00 p.m., plaintiff was recovering well from his surgery so plaintiff's mother left the hospital and went home to get some sleep.

38. On May 23, at approximately 8:00 a.m., while plaintiff was laying in his hospital bed, several defendant police officers unlawfully entered plaintiff's hospital room and arrested him, without probable cause or legal justification.

39. At no time did plaintiff commit a crime, nor did the defendant police officers have probable cause or reason to believe he committed a crime.

40. Nevertheless, the defendant police officers unlawfully handcuffed and shackled plaintiff to his hospital bed.

41. A defendant police officer then called plaintiff's mother and told her that her son had been arrested for allegedly stealing a cell phone on the subway.

42. At no point in time did plaintiff ever steal a cell phone.

43. Plaintiff's mother then went to the hospital to see plaintiff, but a defendant police officer informed her that she had to go to the Transit District 33 precinct and get a visitor's pass before she could be let into the room.

44. Plaintiff's mother then went to the Transit District 33 precinct, got a visitor's pass, and returned to the hospital to visit her son.

45. On May 24, 2012, plaintiff's mother went to Queens County Criminal Court and spoke with a court clerk regarding her son being arrested in his hospital room and handcuffed and shackled to his hospital bed.

46. The Court Clerk looked in the court computer system and informed plaintiff's mother that they did not have any record of plaintiff being arrested on May 23, 2012.

47. Plaintiff's mother then spoke with a judge about having plaintiff's handcuffs and shackles removed.

48. The judge then ordered the defendant police officers to immediately release plaintiff's handcuffs and shackles.

49. Plaintiff's mother returned to the Transit District 33 precinct and showed a defendant NYPD sergeant documentation from the judge ordering the defendant police officers to immediately release plaintiff's handcuffs and shackles, and asked the defendant NYPD sergeant to release plaintiff's handcuffs and shackles.

50. The defendant NYPD sergeant acknowledged that the judge's order said plaintiff's handcuffs and shackles must be released immediately, but nevertheless refused to take off the handcuffs and shackles.

51. Plaintiff was handcuffed and shackled to his hospital bed for approximately 3 days, until the defendant police officers released his handcuffs and shackles at approximately 10:00 a.m. on May 25, 2012, approximately 24 hours after the judge ordered the defendant police officers to immediately remove his handcuffs and shackles.

52. At no time was plaintiff charged with a crime.

53. At no time did plaintiff commit any crime or violate the law in any way.

54. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

55. The false arrest and false imprisonment of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized and falsely arrested and imprisoned, without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

FOURTH CAUSE OF ACTION

Failure to Intervene

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

68. Defendants failed to intervene to prevent the unlawful conduct described herein.

69. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior

SIXTH CAUSE OF ACTION

Negligence

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. Defendants owed a duty of care to plaintiff.

74. Defendants breached that duty of care by falsely imprisoning and unlawfully arresting plaintiff.

75. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

76. All of the foregoing occurred without any fault or provocation by plaintiff.

77. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Shaquann Simmons. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

80. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

82. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Shaquann Simmons demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 21, 2013

By: _____

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

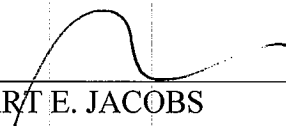
TO: CITY OF NEW YORK, New York City Law Department, 100 Church Street, NY, NY 10007
POLICE OFFICER BRIAN CURRY, 75TH PRECINCT, 1000 SUTTER AVE, BROOKLYN, NY 11208
POLICE OFFICER ERTISCHEK, 75TH PRECINCT, 1000 SUTTER AVE, BROOKLYN, NY 11208
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INVESTIGATOR TAYLOR, BROOKLYN TRANSIT ROBBERY SQUAD, 653 GRAND AVENUE, BROOKLYN, NY 11238
SERGEANT EILEEN MCGLYNN, TRANSIT DISTRICT 33, 2399 FULTON ST, BROOKLYN, NY 11233

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
 August 21, 2013



STUART E. JACOBS